26/03/2025

IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE HELD AT NKAWKAW - EASTERN REGION ON WEDNESDAY THE 26TH DAY OF MARCH, 2025 BEFORE HER LADYSHIP JUSTICE CYNTHIA MARTINSON (MRS), HIGH COURT JUDGE

SUIT NO. C4/02/2022

AGNES ASANTE

VRS.

ATTA PANIN

PARTIES:

Plaintiff present.

Defendant absent.

LEGAL REPRESENTATION:

Richard Nkrumah-Amos Esq. appears for the Plaintiff.

No legal representation announced for the Defendant.

JUDGMENT

The plaintiff claimed per her amended writ of summons filed on 2th of May, 2023 as follows:

a. *A declaration that the statement the Defendant made in public about the Plaintiff constitutes defamation of the Plaintiff and same has negatively affected the Plaintiff's marriage, her status in her family, her church and community.*

b. *An order of the Honourable Court directed at the defendant to offer an unqualified apology to the plaintiff for defaming and harassing the plaintiff which said publication must be published on the local information centre of the community or any other appropriate platform deem fit by the Honourable Court for at least 14 continuous days.*
c. *An order of perpetual injunction restraining the defendant, his agents, assigns, associates, privies, and all those claiming through him from further publication of any defamatory statements against the plaintiff; from harassing the plaintiff; from invading the privacy of the plaintiff; and from circulating any information or material concerning the plaintiff to any third party and the plaintiff herself.*
d. *General damages of GHC 80,000.*
e. *Punitive damages against the defendant for harassing and defaming the plaintiff.*
f. *Costs including solicitor's fees.*
g. *Any other order or orders as this honorable court may deem fit.*

The defendant filed a defence resisting the action. At the close of the pleadings the following issues were adopted for hearing:

1. *Whether or not the statement/comment the defendant made in public about the plaintiff constitute Defamation of the plaintiff.*

2. *Whether or not the plaintiff is entitled to any damages due to the defendant defamatory statements/comments about the plaintiff that have among other things destroyed the plaintiff's reputation, brought her pain and further caused problems in her marriage.*

3. Any other issues raised in the pleadings.

When the matter came up for hearing, the plaintiff testified under oath and called a witness. The defendant did not appear to testify in court even though he filed all the relevant processes. He was however, briefly available to cross examine the plaintiff.

I wish to summarise the evidence of the plaintiff and her witness. The plaintiff testified as follows;

She is a business woman and a native of Danteng in the Nkawkaw Municipality of the Eastern Region of the Republic of Ghana. The Defendant is a farmer and resident of Danteng and lives close to her house at Danteng. She is also a member and a principal elder of the respected Royal Agona family of Danteng and have played active role as an elder in all important activities that took place in the Danteng community.

It is her case that, she was one time nominated as Benkumhene of the Danteng community but because of her busy schedule and because she spends most of her time in Accra, she rather pleaded with the kingmakers so that her younger sister was rather made the Benkumhene, a sub-chief. She said, she is one of the most respected elders of the Danteng community and its environs and people hold her in high esteem.

She narrated that, she has been married to her husband for about thirty five (35) years now without any hitches. She has never committed adultery since they married and there has been no such complaint from her husband. Again, apart from the Defendant in this matter no one else had ever made any similar allegation of adultery against her before.

She further added that, she has seven (7) children whom she nurtured with morals and values from the Christian doctrine. Her children are graduates with some of them living overseas and living responsible lives there. They are now responsible adults and are doing well in their various fields of work. She is yet to hear any complaint about any of these children especially in their adult ages; and this is a testimony that she is highly responsible.

She continued that, she is a breadwinner of, especially, her immediate family in Danteng; and the backbone of that family. The entire Danteng community including the Defendant is well aware of that.

She added that, aside leading a responsible life and using her resources to give quality education to her biological children, she has also nurtured other children into responsible adult life. These include orphans from Danteng community and its environs and these orphans are also responsible adults. She said, her conduct has raised her reputation to the highest level as far as the people of Danteng community and beyond are concerned.

According to the plaintiff, bringing up other people's children including orphans into responsible adulthood has been pretty difficult over the years but she never relented in her efforts since she is still taking care of other people's children even as of today. She is also contributing by helping solve the problem of Danteng community and its environs.

She further added that, she is a staunch Christian and an active member of her church and have devoted her entire life to the service of her maker. She has equally tried every means possible to live in peace with all people especially the people of her native town, Danteng.

She said, she is among a few indigenes who have put up modern houses in the village. Perhaps she can say that, she is one of the few women who has a car in that community. She is also amongst the few people and a female who knows how to drive.

According to her, for some time now, the defendant has been, among other things, maligning and defaming her without any provocation and thereby causing her embarrassment.

For over ten (10) years now the Defendant has not been on good terms with her for no apparent reason. He has also not made any attempt to, at least, talk to her or involve her in any conversation.

To promote peaceful co-existence, her siblings and other personalities in the community have made several efforts to enquire as to why the defendant has decided not to talk to her and also seemed to hate her for no apparent reason. However, on all occasions the Defendant is simply unable to offer any reason or explanation as to why he has decided never to talk to her in the community.

She stated that, upon careful consideration she came to the realization that the Defendant hates her for few reasons. One of these reasons is that she has become more resourceful than him. Again, she has been able to put up a modern house in the community and has also been able to raise responsible children. Moreover, the entire community respects her because of her several charity works.

However, on one occasion the Defendant informed one of her siblings that he would disturb her and her immediate family to the extent that she could lose all her money and other resources.

Upon hearing that message she confronted the Defendant and questioned him as to why he made that statement to her younger sister. She continued that, the Defendant could not challenge her on that. She then made it further clear to the Defendant that once God is alive he could do nothing to her.

She said, despite the fact that the Defendant does not talk to her, he is fond of casting insinuations at her anytime the Defendant sees her around.

She continued that, sometime in 2022 at Danteng, a family member by name Maame Abena Nyamekye died and so a funeral was held for that deceased family member.

She narrated that, On the Monday, after the burial of the deceased had taken place on Saturday, (the family of the deceased), the elders of the town and the general public had a meeting according to customs and traditions of the Danteng community. And this is usually done after burial had taken place on Saturday. The meeting is usually done to assess how the funeral was handled, how losses could be shared among family members and other matters arising after the funeral. And this is exactly what was done after the burial of their deceased relative.

She added that, after that meeting on the said Monday, while she was returning home from town; while she was in the midst of a group of people discussing, among others, matters concerning the funeral, she saw the Defendant standing in front of his house, the moment the Defendant saw her he started shouting on top of his voice, raining insults at her. He made all sorts of disparaging remarks about her. She found the Defendant insults, remarks and comments totally painful,

inconsiderate and difficult to accept. Instantly, her eyes were filled with tears.

It is her case that while she was in the company of people on that said Monday, the Defendant defamed her. According to her, the Defendant who is also a male insulted her by harshly saying the following to her in the Twi language:

"wei mo 3nyinaa s3 3nd3)mo ay3 3nipa. Obaa fon, obaa bonsam, Beyifo), wo a na wo maame etiti ebini die ansa oobewuo, Obaa fon a Wotw3 kaenkaen."

The statement as quoted above is interpreted in English as follows: *"All these people now call themselves human being or call themselves somebody today, useless woman, evil person, devil, you whose mother used to eat toilet before she died, a useless woman with stinking vagina."*

It is her case that, the defamatory statements made by the Defendant was a predetermined one and that the Defendant had deliberately attempted to tarnish her hard-earned reputation.

She also stated that, in Akan communities especially in the Danteng community where both parties come from, the statements of the Defendant quoted above is understood to mean that she is a worthless and useless person, a person who is dirty, a person who is irresponsible and has all manner of irresponsible characters.

According to the plaintiff, the Defendant's statement is also understood to mean, especially among the people of Danteng community, that she is a dirty woman, totally unhygienic and a person who is morally bankrupt.

She continued that, one effect of the words by the Defendant is that she is an evil person, a witch who has scared benevolent persons away from her family, friends and community. The statement also mean that, she does not want anything good to come to her family or her community.

Another effect of these words by the Defendant is that she is a person who is sexually immoral; a person who engages in sexual intercourse with all manner of persons without discrimination; and for that matter a woman whose company ought to be shunned by all and sundry.

She says on authority that, she is not morally bankrupt. She is neither evil nor irresponsible as she has already explained how she raised several children including those who are not her biological children. She is also not sexually perverse, not unhygienic useless, etc. as the Defendant is alleging.

The Defendant's actions and bullying behavior towards her has traumatized, scandalized her and had destroyed her hard-earned reputation.

She added that, Defendant's conduct has caused her so much stress, embarrassment, pain and insecurity. She is currently living in fear and anxiety. She has been gradually slipping into depression and emotional instability ever since the Defendant uttered those words. She is scared and embarrassed among the people of her community and beyond.

Furthermore, because of the conduct of the Defendant casting insinuations and making disparaging remarks about her, she becomes alarmed anytime she sees the Defendant around.

It is her case that, the statements made by the Defendant against her are complete falsehood and that she does not know why the Defendant

is determined to destroy her life and her hard earned reputation. According to her, Defendant himself knows that all that he said about her in public is not true.

Again, it is her case that, due to the Defendant's conduct, many of her friends, age mates, family and friends have shunned her. They have avoided her company and have lost a lot of respect in this regard.

She said, all attempts to persuade the Defendant to see reason and to apologize to her or give tangible reason based on which he uttered those words have proved futile.

She narrated that, she can boldly say without any doubt that since the Defendant made those defamatory statements about her, the attitude of her husband towards her has totally changed. This attitude has been growing from bad to worse each passing day. Her husband is now reading meanings into the fact that since the Defendant comes from the same town with her, it is possible she might be having sexual intercourse or engaging in any other amorous activities with the Defendant in secret which can never be the case.

The Plaintiff says that because of the words authored by the Defendant, her husband is now alluding to the fact that it is possible the Defendant and her are seriously having sexual affairs because according to her husband, if the Defendant had not slept with her or had any sexual affairs with her, the Defendant would not have uttered those words namely she is a "useless woman with stinking vagina" and she finds this situation so unfortunate.

She stated that, her marriage is on the verge of collapse because of the defamatory statement uttered by the Defendant and that she has tried every means possible to resolve the matter with her husband but he

seems not to understand her. This has caused her blood pressure to go up abnormally since the Defendant embarrassed her with his unfortunate and untruthful comments.

She added that, because of the defamatory words uttered by defendant her husband has stopped making any sexual demands from her. Her husband always makes reference to those statements of the Defendant even in the midst of a casual, normal conversation which they used to have before the incident happened.

The Defendant has injured her image and brought her hard-won reputation into hatred, ridicule, odium, discredit, contempt, opprobrium, and reproach and as such her acquaintances sneer at her on the basis of the defamatory statements churned out by the Defendant against her.

Due to the serious nature of the Defendant's statement, the matter was reported to the chief and elders of the town to summon the Defendant to come and explain the basis of his allegation against her. However, the Defendant has blatantly refused the invitation of the chiefs and elders of the Danteng town.

The chief and elders sent a messenger, the Okyeame of the town to approach the Defendant to come to the palace to explain the basis of his allegations against her so that she could, at least, save her reputation or for amicable settlement of the matter between them. The Defendant disregarded and insulted the chiefs and elders of the town and further warned that nobody should come to him again with any useless matter.

She said, together with her husband, they have been waiting with bated breath for the necessary action from the Chiefs and elders of the Danteng Community against the Defendant but nothing has happened. Nothing has happened because the Defendant has never availed himself

despite the invitation by the chiefs and elders of the town. This situation has put her in a very serious and precarious situation.

She continued that, failure or seeming reluctance of the Chief and elders of the Danteng town in resolving the matter is making her husband suspect that the defamatory statement made by the Defendant about her contains some elements of truth. This is the reason why she is in court for justice.

It is her case that unless the Honourable Court restrains the Defendant, he will continue to defame her, threaten her life; and destroy her hard-earned reputation.

The plaintiff was cross-examined by the defendant though he did not avail himself to testify. She denied knowing Kwadwo Sam. She also denied causing the arrest of the defendant.

Plaintiff stated in cross-examination that, the defendant has not been on talking terms with her for about 10 years. She asserted that, defendant has never had sex with her before and that is why she is in court. She again asserted that, the defamatory statement was uttered by the defendant when she was returning from the funeral of one Nyamekye. She insisted that, the defendant was in Danteng and he did utter the defamatory statement. She said, it is not true that he was not in town during the funeral of one Nyamakye. She again affirmed that, somebody accosted the defendant and said it is unethical for a man to utter those defamatory statements. She could not remember the one who accosted the defendant but she insisted she has a witness to the incident.

PW1 Nana Kofi Yeboah testified for the plaintiff via his witness statement as follows:

He knows the Defendant to be a farmer and resident of Danteng and lives close to the Plaintiff's house at Danteng. He also knows the Plaintiff to be a member and a principal elder of the respected Royal Agona family of Danteng and has for quite a long time played active role as a responsible elder who is respected by everybody in the community and even beyond.

According to PW1, Danteng community and its environs and people hold her in high esteem. This is because, among other things, she has been able to take care of her own biological children and some less privileged members and children of her family, the Danteng community and even beyond the community.

It is his case that, Sometime last year, 2022 at Danteng a woman by name Maame Abena Nyamekye passed on to eternity and so a funeral was held for her in the Danteng community. He personally played an active role before, during and even after the burial of the said deceased person.

He stated that, on the Monday, after the burial of the deceased, which took place on Saturday, the family of the deceased, the elders of the town and the general public had a meeting according to the customs, traditions and practices that the people of Danteng community have developed for themselves over the years.

He added that, they usually hold those meetings in the town after a deceased person is buried on Saturday. The community usually hold those meetings to assess how the funeral was handled, how losses could be shared. They also use the opportunity to settle petty issues such as misunderstanding that would have occurred before, during and after the funeral.

He said, he was personally involved in that meeting held on that fateful Monday. After the close of the meeting when the Plaintiff was returning home from the meeting in the midst of people including himself, they saw the Defendant standing in front of his house.

He narrated that, the moment the Defendant saw the Plaintiff the Defendant started shouting and raining insults on the Plaintiff without any provocation whatsoever. He went ahead and made all sorts of remarks some of which would be difficult for him as a chief to say before the Honourable Court.

He testified that, he was there when the Defendant insulted the Plaintiff in the following words in the Twi language:

"wei mo 3nyinaa s3 3nd3)mo ay3 3nipa. Obaa fon, obaa bonsam, beyifo), wo a na wo maame etiti ebini die ansa oobewuo. Obaa fon a Wotw3 kaenkaen.

According to the witness, the statement as quoted above is interpreted in English as follows: *"All these people now call themselves humans being or call themselves somebody today, useless woman, evil person, devil, you whose mother used to eat toilet before she died, a useless woman with stinking vagina.*

It is his case that everybody including the elders around were all surprised to hear those words from Atta Panin, the Defendant herein.

He continued that, he found the Defendant's insults, remarks and comments totally painful, inconsiderate and difficult to accept by any human being especially considering that the Plaintiff is a woman with a husband and respectful children.

He added that, in Danteng community, the statements of the Defendant as quoted above is understood to mean that the Plaintiff is useless person, irresponsible and whose company should be shunned by every reasonable human being. He said the Defendant's statement is also understood to mean, especially among the people of Danteng community, that the plaintiff is a dirty woman, totally unhygienic and a person who is morally bankrupt.

He further added that, later after the Defendant had made those unfortunate comments about the Plaintiff, the Plaintiff through her husband officially reported the matter to the chiefs and elders of the town. He narrated that, the matter was officially reported to their palace as it is usually done in the community when issues such as the instant one happens to a member of the community. The Defendant was therefore summoned to come to the palace and explain the basis of the said allegation against the Defendant.

He continued that, the chiefs and elders, in the interest of peaceful co-existence officially sent Kyeame Kwame Boateng, the linguist of the town to go to the Defendant's house and formally invite him to come to the Palace where the Defendant would be given an opportunity to explain or respond to the allegation raised against the Plaintiff in public. However, the Defendant has since blatantly refused the invitation contrary to customs. The refusal of the Defendant to honor the invitation means that he has rejected the invitation of the entire Danteng community ably represented by the chiefs and elders of the town.

He further stated that, the most painful part of the issue is that he categorically insulted their intelligence especially by branding the

invitation as useless and warned that should they attempt to invite him there would be serious repercussions for them.

He said, the Plaintiff and his husband have been piling pressure on them for a necessary action but they have so far been unable to resolve the matter. Accordingly, nothing has happened because the Defendant has never availed himself despite the invitation by the chiefs and elders of the town to resolve the matter amicably as it is always done in the community. This situation has made the elders and the opinion leaders of the community helpless.

He continued that, this is not the first time the Defendant has ever used such remarks on the Plaintiff.

He further said that, apart from this incident that has resulted in Court action he remembers some few years ago, a similar incident happened. This same defendant insulted and disgraced the Plaintiff mercilessly in public during the funeral celebration of one prominent member of the community namely the late Opanyin Yaw Owusu. He is sure the Plaintiff does not want the Defendant to keep destroying her reputation in the community like what has already happened, and that may account for the present court action to vindicate her rights.

Again, He honestly believes that their failure in resolving the matter as chiefs and elders of the town is what might have also caused the Plaintiff to come to this court to seek justice.

It is noteworthy that, in spite of several hearing notices served, the defendant chose to stay away from the hearing after cross examining the plaintiff briefly. He did not avail himself to cross examine the PW1. It should also be noted that the Defendant filed a Defence and even witness statements in this court. However, the law is that, pleadings per

se are not Evidence. See **Danquah V. Danquah [1979] GLR 371 at 376 per Osei-Hwere J. [as he then was].**

At the conclusion of the case, counsel was ordered to file his address if any. However, as of the time of writing this judgment, nothing has been filed. It is however the law that filing of address at the conclusion of a case is not mandatory;

See: **Amerley V. Otinkorang [1965] GLR 656 SC.**

However, it has just come to the attention of the court that on the 24/03/25 counsel for the plaintiff filed his address but late and far beyond the time ordered by the court.

The plaintiff also served hearing notice on the defendant informing him of the date of the judgment as per the affidavit of service which was commissioned on 19/03/25.

Counsel for plaintiff in his address argued that the plaintiff has proved her case against the defendant and she should therefore be entitled to the reliefs she is seeking in this suit.

BURDEN OF PROOF:

I wish to state that, this suit being a civil matter, the standard of proof (that is, the burden of persuasion) is by preponderance of probabilities. This means the party whose case has brought out the issues in the case is to produce sufficient evidence so that in all the evidence, a reasonable mind could conclude that its existence is more probable than its non-existence.

See:

- **Tuakwa V. Bosom [2001-2002] SCGLR 61**

- **Gihoc Refrigeration and Household Products Ltd V. Hanna Assi [2005-2006] SCGLR 458.**

ADDRESSING THE ISSUES:

ISSUE ONE (1):

Whether or not the statement/comment the defendant made in public about the plaintiff constitute Defamation of the plaintiff.

The case of the plaintiff is that she has been defamed by the defendant when he published to the hearing of other people that she is a useless woman, evil person, Devil with a stinking vagina and that her mother ate toilet before her demise. In the view of the plaintiff, these allegations are false and defamatory which have hurt her reputation as a respected married woman with 7 children and a philanthropist in her community. She is also an elder in the Royal Agona family of Danteng. She continued that, as a result of the defamatory statement she has been shunned by her age mates, family members and her acquaintances sneer at her. She is personally slipping into depression and there are no sexual demands from her Husband. Her case was corroborated by PW1.

In this case, the defendant did not counterclaim for any relief. It is the plaintiff who is alleging that the defendant has defamed her. Therefore, she bears the burden of proof or the onus of proof to lead such evidence so that the court will be convinced about the existence of what she is alleging the defendant has published about her.

The above issue calls for proper understanding of the tort of Defamation in law.

Defamation may mean words which are uttered or written about someone which tend to hold him up to contempt, scorn, or ridicule; or if the words tend to lower his or her reputation in the estimation of right-thinking members of the society or if the words caused him or her to be shunned.

See: **Abu V. BPI Bank Ltd [2014] 68 GMJ 115 CA.**

Defamation is therefore the publication of a statement which is inclined to hurt the reputation of another person. The test for defamation is whether as a result of the statement made, right thinking members of the society will shun the person against whom it is made or regard him/her with feeling of contempt, hatred, or ridicule. A right-thinking person of the society is an upright person in the community where the person who has been defamed lives. Such a person may hold a high opinion of the person who is claiming defamation. If the right-thinking members of the society are likely to change their views or opinion against the person as a result of an act or statement made by another person, defamation is said to have occurred. Usually, defamation is classified into two forms which are libel and slander.

In libel, the defamation is in a permanent form such as writing, painting, and filming. When the defamation is in a temporary form, it is called slander. This can be spoken as in insults, insinuating comments, and derogatory gestures. Under Ghanaian customary law, slander is a form of defamation and is actionable per se. That is, the person slandered can succeed without proof of actual damage.

The law has defences to the claim for defamation and justification is one of such defences. This means the statement is true and can be proved in the law courts. Defamation is also said to be a publication without

justification or which is calculated to injure the reputation of another person by exposing him/her to hatred, ridicule, or contempt. Defamation in our Ghanaian context protects both injured feelings and reputation.

See:

- **ATTIASE V. ABOBBTEY (1969) CC 149 CA.**
- **Wankyiwaa V. Wereduwaa & Another [1963] 1 GLR 332.**
- **Ampong V. Aboraa [1960] GLR 29.**
- **Afriyie V. Dansowah [1976] 2 GLR 172.**

For words to be defamatory, the words must be published concerning the person claiming to be defamed. The said words must be construed in their fair and natural meaning and how reasonable and ordinary people will understand the words. The words must be published. Publication is making known the defamatory matter after it has been spoken to some person other than the person of whom it is written or said. It need not be a large audience and the words must be false.

In the case of **Tufuor V. Beng [1963] 1 GLR 21 at 22** it is stated in the head note, that:

"The words proved to have been uttered by the defendants imputed to the plaintiff untidiness, unworthiness as a human being and per the Akan custom unacceptable. In their natural and primary meaning, they were defamatory of the plaintiff and actionable per se"

The Court of Appeal also held in the case **Attiase V. Abobbtey (supra)** as follows:

"The words which the trial local court find as a fact to have been published, namely the plaintiff is a prostitute and practicing prostitution in her store, were capable of being understood by those who heard the

respondent to mean that the appellant was keeping a brothel camouflaged as a store. Running a brothel is a misdemeanour punishable by imprisonment under Section 277 of Act 29. The Circuit Court Judge was consequently wrong in holding that they are not actionable per se, if the law applicable were common law.

Again, in **Sogbaka V. Tamakloe [1973] 1 GLR 25 at 26, Francois J** (as he then was) held as stated in the head note:

"In an action for slander, a party need not elect which law he is proceeding under, it should prevail since customary law was the applicable law. In the instant case, the epithets complained of were not mere vituperation and were actionable per se. It was not necessary to reproduce the exact words used by the defendants, for it is the impression of reasonable bystanders of what they understand that matters".

See also **Afriyie V. Dansowah [1976] JERL 676 92 HC.**

In **Odifie V. Panin & Others [1964] GLR 317,** it was held among other things as stated in the head note that;

"The principle that at customary law an action for slander lies at the instance of the person slandered is well established but the customary law remedy of recanting is obsolete. However, the principle being established can be developed by judicial process and accordingly the courts can now make an award of adequate damages."

See: **Wankyiwaa V. Wereduwaa (Supra)**

John Mensah Sarbah in his book **"Fanti Customary Laws" (3rd edition) at page 113** has defined slander as follows: ***"Words which cause or produce any injury to the reputation of another are***

called defamatory and if false were actionable. Words imputing witchcraft, adultery, immoral conduct, crime etc. and all words which sound to the disreputation of a person of whom they are spoken are actionable".

See also, **Serwah V. Sefa [1984-86] 2 GLR 390.**

However, words uttered in the heat of quarrel, argument or fight may not be defamatory. See; **Bonsu V. Forson [1962] 1 GLR 139.**

Defamation under Ghanaian laws is actionable per se. Therefore, once the words are false and cannot be justified and have been published and have led to the victim being shunned or becoming a subject of ridicule etc. then, it suffices to be defamation.

See:

- **Wachter V. Harlley [1968] GLR 1069**
- **Serwaa V. Sefa (Supra)**

It is settled law that for an action in defamation to succeed, the plaintiff must prove that the words were communicated to at least one person other than the plaintiff.

See: **Amoako V. Takoradi Timbers Ltd [1982-83] GLR 69.**

Words which are fair, true and are of public interest may be justified under defamation. Again, the person who utters such words must be able to establish that the publication was just an expression by him of his opinion and not an assertion of fact.

See:

- **Daily Dispatch & Others V. Osei Bonsu II [2010] SCGLR 452**

- **Standard Engineering Co. Ltd V. New Times Corporation [1976] 2 GLR 409**

May I reiterate that, In this case, the plaintiff led evidence that the defendant poured insult at her defaming her that; she is a useless woman, an evil person, her mother ate faeces before her demise, she is a dirty woman and that her vagina stinks, to the hearing of other persons including PW1. The words were published in Twi but translated into English in Plaintiff's evidence. These assertions were corroborated by PW1. Even though Defendant was present for a while and denied plaintiff's allegation, he was not present to deny PW1's evidence which corroborated plaintiff's assertions, although he was served with several hearing notices.

As I have indicated earlier, the case of the defendant was closed after he was given several opportunities to come and testify in court but failed to come upon service of several hearing notices on him. There is an authority to the effect that the right to be heard is an established common law principle. It is also an inalienable right which should not be taken away unless the rules of court permit it to be so. See; **Republic V. High Court; Accra Ex-Parte: Salloum & Others (Senyo Coker - Interested Party) [2011] 1 SCGLR 574.**

However, when one has been given the opportunity to be heard but fails to appear in court to state his case, it means he has waived his right to be heard and cannot later complain of breach of natural justice rule. See:

- **Ankumah V. City Investment Company Ltd [2007-2008] SCGLR 1064.**

- **Republic V. Court Of Appeal; Ex Parte Eastern Alloy Co. Ltd [2007-2008] SCGLR 371.**

It is therefore my finding that, when the defendant failed to appear in court after being served with several hearing notices, he waived the right to be heard. In fact he was not present to challenge the testimony of PW1 who corroborated the Plaintiff's evidence.

Yet again, it is to be noted that the Defendant filed a defence and even filed witness Statement but he did not appear to testify.

As I earlier indicated, pleadings are not evidence and one can plead a fact without necessarily giving evidence on same for the consideration of the court. See **Danquah vs. Danquah [supra].**

The law is settled that when a party makes an averment and the averment is not denied, no issue is joined and no further evidence need to be led on that averment. Similarly, when a party had given evidence on a material fact and was not cross-examined upon it, he need not call any further evidence on that fact. It is an implied admission. See:

- **Kusi and Kusi V. Bonsu [2010] SCGLR 60.**
- **Fori V. Ayirebi and Others [1966] GLR 627 SC.**
- **Danielli Construction Ltd V. Mabey and Johnson Ltd [2007-2008] 1 SCGLR 60.**

Again, where an opponent in an action failed to challenge the other party on an issue of fact alleged, then the court would take that failure to challenge as an admission of the truth of the fact as presented by the one who asserted it. See; **Aryeetey V. Brown [2006] 5 MLRG 160 CA.**

I therefore find as a fact that, the defendant published the words the plaintiff complained of about her to the hearing of others.

I also find as a fact that, those words were not true and were published without any justification against the plaintiff.

The plaintiff gave his occupation as business woman. She is also a philanthropist who is also married and an elder of her Royal Agona family at Danteng. The society therefore expects such a person to live above reproach. Therefore, to publish to others that such a person is a useless woman and that her vagina stinks among others will injure her reputation in the eyes of her church members, age mates and right-thinking members of society. She will also lose respect in the eyes of right-thinking members of the society.

The defendant was not justified in the said publication before the members of the community including PW1. I will therefore resolve issue one favour of the plaintiff against the defendant.

ISSUE TWO [2]:

Whether the plaintiff is entitled to any damages due to the defendant defamatory statements/comments about the plaintiff, that have among other things destroyed the plaintiff's reputation, brought her pain and further caused problems in her marriage.

On the question of damages, I wish to say that in defamation, the plaintiff seeks to recover damages for the loss of her reputation. The circumstances which the court may consider to award damages may include the following:

a) The mode of the publication
b) The circumstances in which it was made
c) The extent to which it was made
d) The motive or the conduct of the defendant
e) The date of the publication to the date of the verdict
f) The social standing or the status of the person who has been defamed etc.

See: Abu V. BPI Bank Ltd (Supra)

The plaintiff gave evidence regarding the high respect she is accorded in the Danteng community and beyond. She is a married woman who is presently facing challenges in her marriage as a result of the defamation. She says she has lost her self-respect before her age mates and she is gradually slipping into depression. Her friends sneer at her as a result of the defamatory statement churned out to her and as such she is unable to partake in community activities. According to her, those who receive benevolent items from her fear taking anything from her due to the defamatory words. The above allegation even though were denied by the defendant was corroborated by PW1 without any challenge.

The defendant did not seem to have shown any remorse after the publication to the members of the community including PW1 and he refused to attend to the chief's summons threatening them to dare calling him. Besides, the evidence which stands uncontroverted is that this is not the first time the defendant is pouring out such defamatory statement on the plaintiff. It should also be noted that the parties are neighbours, living in the same community. I hereby award general and punitive damages in the sum of **GH¢40,000.00** against the defendant in favour of the plaintiff. I will decree perpetual injunction to restrain the

defendant, his assigns, servants, privies, associates etc. from publishing any such defamatory statements or words against the plaintiff.

The defendant is ordered to make a continuous daily one-week public broadcast in the local information centre at Danteng, rendering an unqualified apology to the plaintiff herein for defaming and embarrassing her which defamatory words have been found to be untrue.

The Publication should be done within two weeks from the date the judgment is entered. For the avoidance of doubt, all the plaintiff's reliefs have been granted save the quantum of damages which has been partly granted as per the Judgment.

The plaintiff's action therefore succeeds. Cost of **GH¢15,000.00** inclusive of legal fees against the defendant in favour of the plaintiff.

(SGD.)
JUSTICE CYNTHIA MARTINSON (MRS.)
HIGH COURT JUDGE